Township of NIPISSING
"Life the way it should be" ESTABLISHED 1888

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REPORT TO COUNCIL

Date: June 19, 2025

From: Dan MacInnis, Operations Superintendent
Kim Turnbull, Deputy Treasurer-Office Assistant
Kris Croskery-Hodgins, Municipal Administrator-Clerk-Treasurer

Re: Tender Results and Project Recommendations Stone Cutter's Road Culvert

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Background:

The Tender for the replacement of Stone Cutter's Road Pipe Arch Culvert was re-circulated to increase bidder interest as only one submission was received originally and it was over the expected budgeted amount.

The re-issued tender document was revised for clarification and sent out to a targeted bidding pool as well as advertised publicly. Four (4) submissions were received by the opening time of 2:15 p.m. on June 13th.

Copy of the Results Page is attached for reference.

Results:

Lefebvre Commercial Industrial Inc. submitted a page of "Supplementary Conditions" which was not permitted per the tender document. These conditions were to be considered in the bidding of the project as it was laid out.

There was a pricing error on #9 of the form, $2.03. **Total Tender: $423,149.65**

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107 Excavating Inc. submitted a bid. There was a pricing error on #13 of the form, $1,350.57.

Total Tender: $325,015.91

J&P Leveque Bros Haulage Ltd. submitted a bid. There were no errors.

Total Tender: $468,870.90

Deep Construction 2018 INC. submitted a bid. There were no errors.

Total Tender: $514,915.01

The approved budget for this project in the 2025 Budget is $400,000.00.

Council approved the purchase of the culvert pipe, R2025-072 $192,373.50 plus taxes.
The gravel for this project has been reserved at a cost of $25,000 plus taxes from Evan Hughes Excavating Pit, located close to the project site.

The remaining budget for the work to replace the pipe is $182,626.50.

All submissions are over the budget expectations.

Work references were requested from all bidders to ensure that they were capable of completing a job of this scope, had experience with this type of project and understood the equipment and labour requirements of this scope of project.

Staff Recommendations:

Lefebvre Commercial Industrial Inc. provided a Supplementary Conditions to Contract and Tender document, which is in contradiction of Information for Tenderers, 1. Tender Form, instructions by providing statements restricting the tender. Staff recommend that this bid be rejected based on this and the contents of the supplementary document.

In reviewing the references of the top two bids, staff reviewed:

107 Excavating Inc. provided a reference but this did not demonstrate past experience on a project of this size or scope. In speaking with representatives from the company, a review of the proposed equipment and labour complement did not reflect a full comprehension of the scope of work to be completed.
Although this is the lowest bid received, staff is not confident that they will independently provide the project service expected and required.

J&P Leveque Bros Haulage Ltd. submitted a complete tender package including experience demonstrating previous work of this scope, an understanding of the required equipment and staffing complement and detailed costing of the work segments in line with expected costs for the tasks. Staff recommends accepting the bid submitted by J&P Leveque Bros Haulage Ltd at a cost of $468,870.90, including all taxes.

Budget Overrun Contingency Recommendation:

The Bear Creek Culvert replacement project has a 2025 Budget projection of $700,000.00. The structure was repaired in 2024 and has not moved since the repair was installed. The repair is expected to remain stable for 2025 and into 2026.

This project is posing significant difficulties securing supplies and labour to perform the project within the budget scope.

An unexpected failure in the South River Road Culvert was experienced in 2025 which was not included in the approved 2025 Budget. The costs of this project and the Bear Creek Culvert project were included in a new grant opportunity, Health and Safety Water Stream applied for in May 2025.

Staff recommend that the budgeted amount for the Bear Creek Culvert Project be used for the overrun of the Stone Cutter's Road Project and the South River Road Project and defer the Bear Creek Culvert Project to 2026.

This will allow for the grant application process to follow its course and if successful, provide funding for the Bear Creek Culvert project at the increased expected costs.

Summary:

1. Accept the Tender submission of J&P Leveque Bros Haulage Ltd. $468,870.90 (including taxes).
2. Defer the Bear Creek Culvert Project to the 2026 Capital Projects list.
3. Utilize the $700,000 budgeted for the Bear Creek Culvert project towards the overrun of the Stone Cutter's Road Project and the unexpected costs of the South River Road Culvert Project.
4. Follow up on the grant application submitted for the Health and Safety Water Stream.

Respectfully,

Dan MacInnis, Operations Superintendent
Kim Turnbull, Deputy Treasurer-Office Assistant
Kris Croskery-Hodgins, Municipal Administrator-Clerk-Treasurer

Township of Nipissing
Tender Opening - NIP-PW-10-2025-Re-Issue
Opened: June 13th, 2025 beginning at 2:15 p.m.

Present: Kim Turnbull - Deputy Treasurer, Dan MacInnis- Operations Superintendent, Francis Levebvre – LCI, Bernie Morrison and Dave Vanbuskirk – Deep Construction
Zoom: Dan Robinson – Leveque Bros., and Alexandra Mercieca – 107 Excavating

Company Name	**NIP-PW-10-2025 – Re-Issue** Replacement of Stone Cutter's Road Pipe Arch Culvert **Work to be completed by July 31st, 2025**		
Lefebvre Commercial Industrial Inc.	Deposit Cheque ☒ Declaration of Tenderer ☒ Addendum 1 ☒ Addendum 2 ☐ Contract Agreement ☒ Experience of Contractor ☒ *Bidder Included Supplementary Conditions* Project Start Date: June 23rd, 2025	Replacement of Stone Cutter's Road Pipe Arch Culvert 5490 MM Span 3530 MM Rise Polymer Coated CPCSP Tender Price HST **Total Tender Price** Submitted Bid Error# 9:	 **$374,468.72** **$ 48,680.93** **$ 423,149.65** **$423,147.62** **$2.03**
107 Excavating INC	Deposit Cheque ☒ Declaration of Tenderer ☒ Addendum 1 ☒ Addendum 2 ☒ Contract Agreement ☐ Experience of Contractor ☒ Date: July 1st, 2025	Replacement of Stone Cutter's Road Pipe Arch Culvert 5490 MM Span 3530 MM Rise Polymer Coated CPCSP Tender Price HST **Total Tender Price** Submitted Bid Error# 13:	 **$287,624.70** **$37,391.21** **$325,015.91** **$323,665.34** **$1,350.57**
J&P Leveque Bros Haulage Ltd.	Deposit Cheque ☒ Declaration of Tenderer ☒ Addendum 1 ☒ Addendum 2 ☒ Contract Agreement ☐ Experience of Contractor ☒ Date: July 14th, 2025 Subcontractors Listed in Tender	Replacement of Stone Cutter's Road Pipe Arch Culvert 5490 MM Span 3530 MM Rise Polymer Coated CPCSP Tender Price HST **Total Tender Price**	 **$414,930.00** **$53,940.90** **$468,870.90**

Deep Construction 2018 INC.	Deposit Cheque ☒ Declaration of Tenderer ☒ Addendum 1 ☒ Addendum 2 ☒ Contract Agreement ☐ Experience of Contractor ☒ Date: July 2025 Subcontractors Listed in Tender	Replacement of Stone Cutter's Road Pipe Arch Culvert 5490 MM Span 3530 MM Rise Polymer Coated CPCSP Tender Price HST **Total Tender Price**	 **$455,677.00** **$59,238.01** **$514,915.01**

Staff Recommendation: J&P Leveque Bros. Haulage LTD. recommended for the Stone Cutter's Arch Culvert based on the completed tender package. Their experience in previous work demonstrates their ability to complete the Stone Cutter's Culvert project.
The total tender price is outside of the budgeted amount for the project including the NORDS (Northern Ontario Resources Development Support Fund) funding, the difference to be funded by alternate budget sources.

2025 Approved Budgeted amount: $400,000 (Township to supply culvert and gravel)